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First UC-Berkeley protester hearing gets under way

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(*#_Company_Name_#*) BERKELEY, Calif. -- The first hearing of the 32 Wheeler Hall student protesters at the University of California-Berkeley failed to reach a final resolution Monday -- the result of time constraints that prevented the defense from questioning some of its witnesses.

Roberto Hernandez, a recent UC Berkeley graduate, is charged with five violations of the code of conduct: physical assault in allegedly biting a police officer, unauthorized entry, obstruction or disruption of teaching, unlawful assembly and failure to identify oneself or comply with the directions of a university or other public official.

Despite heated controversy on the makeup of the committee and a moved hearing location to the Clark Kerr Campus, Committee on Student Conduct Chair David Zusman stressed his intent to provide a fair trial to Hernandez, particularly noting that politics would be excluded from the discussion.

"We have no axe to grind," Zusman said. "The purpose of this hearing is to ask everyone. We're going to ask the university, (defense) witnesses and see what happened."

The committee, which serves as the jury and will make a recommendation to the university, is composed of Zusman, who is also a professor of biochemistry and molecular biology, math Professor Paul Vojta and an undergraduate student who requested anonymity.

But Anne Weills, one of Hernandez's lawyers from the National Lawyers Guild, said the pro-Palestinian nature of the protest was the reason behind the crackdown on the protesters. She said her clients were treated differently from students who participated in previous protests.

Weills said Hernandez has already suffered before being proven guilty by the committee.

But Dean of Students Karen Kenney, who testified on behalf of the university, said it is "normal practice" to block students who have violated the code of conduct from receiving their degrees until their cases are resolved.

"I did everything I could to assist (Hernandez) to possibly not have his degree blocked," Kenney said, adding that her previous contact with Hernandez was partly why she recused herself from making the final decision on his case.

Director of Student Judicial Affairs Neal Rajmaira and Student Conduct Officer Michele Frasier represented the university.

UC police Officer Mitchell Celaya, UCPD Building Watch Program coordinator and crowd control expert, served as a crucial witness for the university.

Although Celaya said he did not personally see Hernandez bite a police officer, he said he would not characterize him as the "nonviolent" type.

Celaya explained several types of "defense tactics" used by UC police, including the "salivary gland hold," one of the tactics used on Hernandez.

Demonstrating the tactic to the committee using Noreen Farrell, another of Hernandez's lawyers from the National Lawyers Guild, Celaya placed his fingers around her neck from behind, showing that the pressure would be placed on each side of the salivary glands in a "sipping a bowl of soup" movement.

UC police Lt. Jim West testified earlier that Hernandez, who had linked arms with other protesters, was moving his head back and forth at the time he was arrested. Farrell said the officers' tactics may have caused Hernandez's movements.

Three character witnesses testifying on Hernandez's "nonviolent nature" were allowed to testify before the official start of the defense because of their strict schedules.

Outside, more than 100 supporters of Hernandez protested the committee's decision to close the hearing to the public, despite Hernandez's written request for it to be open.

Some also opposed the committee's lack of a graduate student representative in the hearing committee. Typically, the hearing committee consists of two students, one staff member, one faculty member and a faculty chair, according to the Student Code of Conduct.

Weills said the absence of a graduate student on the hearing committee limits Hernandez's opportunity to a fair trial.

"This is part of due process -- having your peers here," she said.

But the student committee member, nominated by ASUC President Jesse Gabriel and trained over the weekend, said he would hear the case with "double fairness" to account for the absence of a graduate student on the committee.

Rajmaira said he had attempted to contact a law student recommended by the Graduate Assembly to serve on the committee, but the student indicated that she was no longer available.

Zusman said he expects the committee to make a decision some time this week after convening at another time.

A series of hearings for the rest of the Wheeler Hall protesters charged with student code violations are scheduled throughout the month. The next hearing is scheduled for Thursday.

Michael Rosen-Molina of the Daily Cal staff contributed to this story.

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